

CC: 020/030

The Baltic and International Maritime Council

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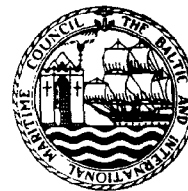
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Philippe Pokier d'Angé d'Orsay
President

Your Ref

P3-99

Our Ref

Bryant L. VanBrakle

Secretary

Federal Maritime Commission
800 North Capitol Street, NW
Washington DC 20573-0001
USA

3 Novembre 1999

Re: Petition Number P3-99

Dear Mr. VanBrakle,

Disadvantages Imposed upon COSCO in the United States

BIMCO is the world's largest private international shipowners' organization with more than 2700 members in 114 countries including 1000 shipowners representing around 60% of the world's merchant tonnage. For over 90 years BIMCO has been actively involved, on behalf of its membership, in the pursuit of greater harmonisation of maritime laws, and of fairness of rules and regulations pertaining to international shipping.

One of our highly valued members is China Ocean Shipping (Group) Company, with whom we enjoy an excellent relationship and we regard the company as being run professionally in a very efficient, correct and commercial manner without any subsidies whatsoever.

I am pleased to say that I know Captain Wei, the President of COSCO personally and hold him in high regard as a shipping man. He has recently been elected to the Executive Committee of BIMCO for a two year term.

We understand that a meeting in the FMC is scheduled to be held on November 9th and we would therefore be grateful to the Commission if it would be able to consider our appeal in support of COSCO, even though we realise that we are past the period assigned for making comments.

.../...

We are aware that COSCO has petitioned for an exemption so as to allow it to publish rates that are effective upon publication and thus participate in the market on the same terms as its competitors while at present it remains seriously disadvantaged.

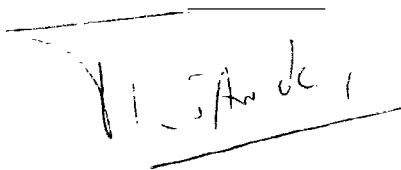
We understand that COSCO's services are valued by shippers and that its petition is being supported by competing lines. American President Lines Ltd. supported the petition as being sound. Sea-Land Service Inc. has also supported COSCO's petition.

Likewise the Maritime Administration (MARAD) has expressed its support and during the Sino-US maritime discussions, the US delegation agreed to support a Chinese carrier applying for permission to file rates on the basis of one day's notice. Being party to the TSA and WTSA, COSCO has demonstrated its commitment to responsible marketing policies and should therefore be given the same freedom as other lines.

I am willing and pleased on behalf of BIMCO to join the above-mentioned bodies and companies in their support of COSCO's petition being granted.

Yours sincerely,

BIMCO



Philippe Poirier d'Angé d'Orsay
President of BIMCO

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